



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

January 21, 2016

Memorandum for: Deputy Commissioner Trials

Re: **Police Officer Joseph Murphy**
Tax Registry No. 946058
Housing Borough Manhattan
Disciplinary Case Nos. 2011-5248 and 2011-5899

The above named member of the service appeared before Deputy Commissioner Rosemarie Maldonado on June 19, July 29, and August 14, 2015, and was charged with the following:

DISCIPLINARY CASE NO. 2011-5248

1. Said Police Officer Joseph Murphy, while assigned to the 46th Precinct, on or about February 18, 2011, within the confines of the 46th Precinct, in Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Police Officer engaged in a physical altercation with Tyre Davis, without police necessity. (*As amended*)

P.G. 203-10, Page 1, Paragraph 5
P.G. 203-11, Page 1

GENERAL REGULATIONS
USE OF FORCE

2. Said Police Officer Joseph Murphy, while assigned to the 46th Precinct, on or about February 18, 2011, within the confines of the 46th Precinct, in Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, in that while outside of the 46th Precinct stationhouse, said Police Officer Murphy followed Tyre Davis and engaged in a physical altercation with him, without police necessity. (*As amended*)

P.G. 203-10, Page 1, Paragraph 5
P.G. 203-11, Page 1

GENERAL REGULATIONS
USE OF FORCE

DISCIPLINARY CASE NO. 2011-5899

1. Said Police Officer Joseph Murphy, while assigned to the 46th Precinct on or about April 21, 2010, upon observing, having become aware of, or upon receiving an allegation of corruption or misconduct involving a member of service, did fail and neglect to immediately notify the Internal Affairs Bureau, as required.

P.G. 207-21, Pages 1 and 2

ALLEGATIONS OF
CORRUPTION AND OTHER
MISCONDUCT AGAINST
MEMBER OF THE SERVICE

2. Said Police Officer Joseph Murphy, while assigned to the 46th Precinct, on or about and between March 20, 2010 and September 19, 2011, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer on one occasion assisted and/or requested the assistance of another member of the service to prevent the processing and adjudication of a summons issued to another individual.

P.G. 203-10, Page 1, Paragraph 5

**PROHIBITED CONDUCT
GENERAL REGULATIONS**

In a Memorandum dated November 5, 2015, Deputy Commissioner Rosemarie Maldonado found Police Officer Joseph Murphy Guilty of Specifications Nos. 1 and 2 in Disciplinary Case No. 2011-5248, and Guilty of Specification No. 1 and Not Guilty of Specification No. 2 in Disciplinary Case No. 2011-5899.

Having previously read the Memorandum and analyzed the facts of this matter, I approved the findings, but disapproved the penalty. In a memorandum dated January 8, 2016, I determined that Police Officer Murphy's immediate separation from the Department was warranted, and was offered the opportunity to separate from the Department by entering into a post-trial negotiated settlement. However, since Police Officer Murphy has rejected the offer of a post-trial negotiated settlement, Police Officer Murphy is to be dismissed from the Department.


William J. Bratton
Police Commissioner



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

January 8, 2016

Memorandum for: Deputy Commissioner Trials

Re: **Police Officer Joseph Murphy**
Tax Registry No. 946058
Housing Borough Manhattan
Disciplinary Case Nos. 2011-5248 and 2011-5899

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GENERAL REGULATIONS
USE OF FORCE

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**PROHIBITED CONDUCT
GENERAL REGULATIONS**

In a Memorandum dated November 5, 2015, Deputy Commissioner Rosemarie Maldonado found Police Officer Joseph Murphy Guilty of Specifications Nos. 1 and 2 in Disciplinary Case No. 2011-5248, and Guilty of Specification No. 1 and Not Guilty of Specification No. 2 in Disciplinary Case No. 2011-5899. Having read the Memorandum and analyzed the facts of this matter, I approve the findings, but disapprove the penalty.

I have considered the totality of the circumstances and issues in the misconduct for which Police Officer Murphy has been found Guilty and deemed that separation from the Department is warranted. However, instead of an outright dismissal from the Department, I will permit an alternative manner of separation from the Department for Police Officer Murphy at this time.

It is therefore directed that an *immediate* post-trial negotiated agreement be implemented with Police Officer Murphy in which he shall immediately file for vested-interest retirement, forfeit sixty (60) suspension days (previously served), waive all time and leave balances, including terminal leave, and waive all suspension days, with and without pay, if any, and be placed on one (1) year dismissal probation.

Such vested-interest retirement shall also include Police Officer Murphy's written agreement to not initiate administrative applications or judicial proceedings against the New York City Police Department to seek reinstatement or return to the Department. If Police Officer Murphy does not agree to the terms of this vested-interest retirement agreement as noted, this Office is to be notified without delay. This agreement is to be implemented **IMMEDIATELY**.


William J. Bratton
Police Commissioner



POLICE DEPARTMENT

November 5, 2015

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In the Matter of the Charges and Specifications : Case No.
- against - : 2011-5248 & 2011-5899
Police Officer Joseph Murphy :
Tax Registry No. 946058 :
Housing Borough Manhattan :
-----X

At: Police Headquarters
One Police Plaza
New York, New York 10038

Before: Honorable Rosemarie Maldonado
Deputy Commissioner Trials

APPEARANCE:
For the Department:

Joshua Kleiman, Esq. &
David Bernstein, Esq.
Department Advocate's Office
One Police Plaza
New York, New York 10038

For the Respondent:

Stephen Drummond, Esq.
Drummond & Squillace, PLLC
175-61 Hillside Avenue, Suite 205
Jamaica, NY 11432

To:

HONORABLE WILLIAM J. BRATTON
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

The above-named member of the Department appeared before me on June 19, July 29, and August 14, 2015, charged with the following:

Disciplinary Case No. 2011-5248

1. Said Police Officer Joseph Murphy, while assigned to the 46th Precinct, on or about February 18, 2011, within the confines of the 46th Precinct, in Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Police Officer engaged in a physical altercation with Tyre Davis, without police necessity. (*As amended*)

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS
P.G. 203-11, Page 1 - USE OF FORCE

2. Said Police Officer Joseph Murphy, while assigned to the 46th Precinct, on or about February 18, 2011, within the confines of the 46th Precinct, in Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, in that while outside of the 46th Precinct stationhouse, said Police Officer Murphy followed Tyre Davis and engaged in a physical altercation with him, without police necessity. (*As amended*)

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P.G. 203-11, Page 1 - USE OF FORCE

Disciplinary Case No. 2011-5899

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P.G. 207-21, Pages 1 and 2 - ALLEGATIONS OF CORRUPTION AND
OTHER MISCONDUCT AGAINST MEMBER OF
THE SERVICE

2. Said Police Officer Joseph Murphy, while assigned to the 46th Precinct, on or about and between March 20, 2010 and September 19, 2011, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit said Police Officer on one occasion assisted and/or requested the assistance of another member of the service to prevent the processing and adjudication of a summons issued to another individual.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT
GENERAL REGULATIONS

The Department was represented by Joshua Kleiman Esq. and David Bernstein, Esq., Department Advocate's Office, and Respondent was represented by Stephen Drummond, Esq. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The Department called Tyre Davis, Lieutenant Michael Kotlyer, Police Officer Victor Rosa, Sergeant Timothy Dillon, Detective Derick Cuebas, Sergeant Bryan Brooks, and Lieutenant Kenneth Rodgers as witnesses. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Disciplinary Case No. 2011-5248

Respondent is found Guilty of Specifications 1 and 2.

Disciplinary Case No. 2011-5899

Respondent is found Guilty of Specification 1 and Not Guilty of Specification 2.

FINDINGS AND ANALYSIS

Disciplinary Case No. 2011-5248

Respondent stands charged with following Tyre Davis and engaging in a physical altercation with him without police purpose. Having carefully considered the evidence and testimony, this tribunal finds Respondent Guilty of Specifications 1 and 2.

The following is a summary of the undisputed facts. On February 18, 2011, Police Officer Jose Ocasio and his team brought Tyre Davis, along with a group of friends, to the 46 Precinct to receive a summons for failure to disperse. (Tr. 92; Respondent's Exhibit ("RX") J) After being released from a holding cell, Davis remained outside the Precinct

waiting for his personal property. Eventually his items and the summons were tossed out to him. (Tr. 48, 184)

Security videos obtained by the Department depict the following as Davis was walking down the street away from the precinct:

- Davis is seen walking at a normal pace down the street toward a deli. Ocasio and Respondent walk approximately 15 feet behind him. Ocasio was in uniform and Respondent was in plainclothes. (Department's Exhibit ("DX") 10B at 0:33-0:44 seconds)
- Davis stops, turns, steps forward and steps to the side. Ocasio walks toward Davis with Respondent approximately two yards behind. Ocasio approaches Davis' right and Respondent approaches Davis's left as all three turn toward an alleyway. (DX10A at 3:17:05-3:17:11, DX 10B at 0:40-0:47 seconds)
- Respondent places his hand on or about Davis' back and seems to nudge or push him. Davis staggers slightly and takes approximately six steps in the direction of the alleyway. (DX 10A at 3:17:13-3:17:17; 10B at 0:40-0:47 seconds)
- Ocasio punches Davis. Davis stumbles toward Respondent. Respondent reacts by raising his elbow and jerking to the left. (DX 10A at 3:17:20; Tr. 134-35)
- Respondent kicks or knees Davis, bringing him toward the ground, and then strikes Davis a second time with his leg. (DX 10A at 3:17:22-3:17:24)
- Ocasio kicks Davis as he is crouched on the ground and Respondent strikes a third time with his leg. (DX 10A at 3:17:25-3:17:27)
- The two officers walk away, out of the view of the camera. Davis stands, picks up his hat and walks off in the opposite direction. (DX 10A at 3:17:30; Tr. 139)

Davis returned to the precinct about an hour later with his mother and sisters, as he was 17 at the time. They filed a complaint and called an ambulance. (Tr. 56-57) Davis was treated at [REDACTED]

[REDACTED] He was advised to [REDACTED]

[REDACTED]

Respondent left for vacation following the incident. He made no Departmental notifications about this incident prior to his departure. Upon his return, Respondent was placed on modified duty. Approximately six months later, Respondent was arrested for his participation in this physical altercation. Following a criminal trial, Respondent and Ocasio were found guilty of attempted assault in the third degree and second degree harassment. They were sentenced to forty-five days imprisonment. (DXs 1A, 1B; Tr. 358) Respondent served twenty days. (Tr. 439) Respondent has moved to vacate the conviction.

Davis became affiliated with the [REDACTED] Gang and is presently incarcerated in a federal penitentiary, having pled guilty to [REDACTED] in August 2014. (Tr. 41-43; RX A) He was sentenced to thirty months in prison following his plea. (RX A)

In dispute is whether Respondent engaged in misconduct when he struck Davis with his leg. The witnesses for the Department Advocate and Davis provided differing accounts as to the level of Respondent's involvement and the circumstances surrounding the incident captured on video. After reviewing the record in its totality I find that Respondent is guilty of misconduct and that he used excessive force when he struck Davis without police necessity.

The following is a summary of the Department's case. Police Officer Victor Rosa testified that he first observed Davis in the lobby of the precinct waiting for his property. (Tr. 182, 200-01)¹ He recalled that Davis was pacing, and that he exhibited "aggressive and tumultuous behavior, cursing." Rosa directed him to wait outside. (Tr. 183) When Davis refused to leave, another officer grabbed him. According to Rosa, as Davis lingered

¹ This tribunal notes that there were inconsistencies in Rosa's testimony with respect to his own field activities that night. These statements, however, were not found to be dispositive of the charges. Moreover, this tribunal did not rely on Rosa's account in making findings of fact.

in front of the Precinct, Ocasio threw his property at him causing Davis to start cursing again. (Tr. 184, 215)

Rosa recounted that Ocasio then began to run after Davis. (Tr. 185) He started to go with him but realized that Respondent was with Ocasio. He explained, "When I saw he was accompanied by another police officer, I just let it go." He further testified that he did not observe anything that warranted police action but acquiesced that he could not see or hear what happened after the officers gave chase. (Tr. 185, 216-17)

When Ocasio returned, he told Rosa that he "took care of it." (Tr. 186). Rosa added that after Davis returned to the precinct with his family, Ocasio told him that Davis had spit on him and that Ocasio had punched him. (Tr. 189) He further recalled a subsequent conversation where Ocasio admitted that he had punched Davis and Respondent had kicked him. (Tr. 192-93)

Testimony about the Internal Affairs Bureau investigation was provided by Lieutenant Kenneth Rodgers. According to Rodgers, Ocasio told him that Davis had made a gun gesture at him and had threatened him about what would happen when they "met in the street." (Tr. 378, 380) Rodgers' investigation revealed that Ocasio and Respondent rarely worked together and were not friends. Based on his finding, Rogers concluded that Respondent and Ocasio did not collude beforehand to follow and assault Davis. (Tr. 384-85, 400-01, 408)

According to Davis, during the processing of his February 18, 2011 arrest, an unidentified officer came "out of nowhere" to grab him and push him out of the Precinct before his personal belongings had been returned. Davis admitted that right before that

happened he had a "little scuffle" involving "grabbing" in the Precinct. (Tr. 47, 95) He then waited in front of the Precinct until his property was "thrown" outside. (Tr. 48)

After he retrieved his items and began walking home, Davis observed a plainclothes officer, Respondent, and a uniformed officer, Ocasio, walking behind him. He allegedly remembered Respondent from an incident the week before. (Tr. 46-47, 49, 53)²

He stopped and turned around when he heard one of the officers yell, "Yo." (Tr. 49-50, 154-55) According to Davis, one officer "guided" him with his hand toward an alleyway where he was punched and kicked by both officers. (Tr. 50-51) Davis denied saying anything to either officer or acting aggressively by spitting or clenching his fists. (Tr. 52, 109, 125-29)

Respondent offered a very different account of what transpired on the night in question. Respondent did not work with Ocasio that night. He recalled leaving the precinct at approximately 0300 hours after having completed the arrest of five individuals for gun possession. (Tr. 421-22) Over the course of the few minutes it took for Respondent to put items into his car, he observed Ocasio involved in what appeared to be a "hostile" verbal "confrontation" with Davis. (Tr. 425-26) Respondent explained that he felt obliged to render assistance to a fellow officer and approached to make sure Ocasio was safe. (Tr. 426-27). He acquiesced that he did not have the opportunity to speak to Ocasio about what was going on but saw Davis turn around and gesture at Ocasio. (Tr. 428, 465)

Respondent stated that his intention was to approach Davis first and try to "cool things down." (Tr. 428, 467) Davis, however, then "squared up," in a fighting stance and

² Lieutenant Kenneth Rodgers' investigation into the incident revealed that there was no evidence to corroborate Davis' claim that he was assaulted by Respondent a week prior to the incident in question or that he interacted with Respondent inside the precinct on February 18, 2011. (Tr. 373)

Ocasio tried to grab him. Ocasio directed Davis to "stop," and Respondent believed they were going to conduct a pat-down. (Tr. 472-73) Respondent described Davis' face as "evil" and observed that he did not appear to "fear" law enforcement. (Tr. 431) He denied knowing Davis or having any prior interactions with him. (Tr. 424, 462-63).

Respondent acknowledged pushing Davis towards the wall to conduct a pat-down. He explained that once in the vicinity of the alleyway he did not see Ocasio punch Davis because he heard a window open and looked up to see if anything was being thrown in their direction. Respondent then moved when Davis came in his direction, testifying that he thought Davis was coming at him. He contends that his "reaction" was to "bring [Davis] to ground" by "throw[ing] my knees" and kicking Davis. He denied kicking Davis again while he was on the ground, asserting that he kicked the wall "out of frustration because I believe[d] I had just been attacked." (Tr. 431-32, 479-486, 520)

Respondent contends that he had no intention of hurting Davis but that he would take such action again to render assistance to another officer. (Tr. 432-33) He asserted that he walked away, leaving Davis on the ground, because he was following Ocasio, who was "the one that was in charge." (Tr. 488) He stated that, in hindsight, he wished he had forced Ocasio to arrest Davis. (Tr. 488-89)

As set forth above, Davis and Respondent presented different versions of what transpired on the night in question. Not surprisingly, each denied any wrongdoing and portrayed events in a manner that minimized their own culpability.

Davis' credibility was diminished significantly by the disrespect he demonstrated at trial. Davis is a convicted felon who smirked, smiled and snickered while testifying. His unsettling demeanor appeared to reveal a manifest disregard for the seriousness of this

proceeding. He also has a civil lawsuit pending against the city, which can serve as a strong motive to embellish or fabricate the truth.

Respondent, however, was also found to be an unreliable witness. First, this tribunal must acknowledge that he has a very strong motive to present testimony that absolves him of misconduct. At the hearing Respondent underscored that being a police officer is the only thing he has ever wanted to do. A finding of guilt could put the job he loves at risk. Second, material aspects of Respondent's testimony were not corroborated by the independent evidence presented at trial. Within this context, Respondent's explanations for his most egregious conduct seemed self-serving. An example is Respondent's assertion that the video depicts him kicking a wall, and not Davis. Third, Respondent was convicted for attempted assault in the third degree and second degree harassment for his attack of Davis and has moved to vacate that conviction. Thus, Respondent has an interest in presenting evidence that is consistent with the arguments presented therein. Fourth, at trial Respondent showed little insight concerning the misuse of force in this case – a factor that seems to have tainted his account.

In this case, however, the tribunal need not rely solely on conflicting and self-serving accounts. The video recordings of the incident speak largely for themselves and, given the totality of circumstances, support a finding that Respondent violated the Patrol Guide when he followed and used force against Davis.

As discussed in more detail above, Davis is first shown walking at a normal pace down the street while looking straight ahead. Respondent and Davis are also seen walking together at some distance behind him. Although the video is dark, and has no audio, this first segment of the video presents no indication of any interaction between Ocasio and

Davis, much less a verbal altercation or idicia that Ocasio was being confronted. This tribunal acknowledges that Davis does turn around, then takes one step forward and then to the side, but at that point Respondent had already joined Ocasio and they had both been following Davis for some time. In sum, the recording of this initial encounter does not corroborate Respondent's statement that he left his car to join Ocasio because Davis was confronting him. It does, however, lend credence to Davis's testimony that he was being followed by Respondent and Ocasio and that he turned around in response to someone calling out.

The videos further establish that after having followed Davis, the officers surrounded him on either side, put their hands on him and physically led him approximately six steps into an alleyway. Contrary to the assertions of Respondent and counsel, Davis' conduct captured on video does not depict a person in an aggressive stance. What we do see on the video is two police officers who are the aggressors. Ocasio punches Davis seemingly without provocation. Respondent follows suit by kneeling Davis, bringing him toward the ground and striking Davis a second time with his leg as he is falling to the ground against a wall. The video further captures Ocasio kicking Davis and Respondent striking Davis a third time with his leg as Davis is on the ground protecting his head from further blows. Finally, and perhaps most problematically, after repeatedly striking Davis, Respondent and Ocasio simply leave him lying in the alleyway and walk away.

At trial Respondent attempted to rationalize his use of force. He explained that he did not see when Ocasio first punched Davis because he was looking up for possible "air mail." According to Respondent, when Davis stumbled into him after Ocasio's punch Respondent struck back to protect himself. I do not believe Respondent's testimony that he

reacted in self-defense. However, even if I were to credit Respondent's assertion that he initially took Davis to the ground with his knee because he believed he was about to be assaulted, the evidence does not support Respondent striking Davis a second time as he is falling to the ground and then a third time while Davis was still on the ground covering his head himself. Likewise, I find Respondent's explanation that he kicked the wall, and not Davis for a third time, to be both self-serving and patently false. Moreover, Respondent's assertion that he was merely following Ocasio's lead and that he did not talk to him about it either before or after the altercation is not an adequate defense. Quite simply, there was no credible justification for Respondent's decision to use physical force against Davis, leave him on the ground, walk away, take no legitimate police action and then make no Departmental notifications about what occurred.

In sum, Respondent's defense defies the boundaries of common sense and logic. Officers are entitled to use appropriate means, including force, to apprehend criminals, compel compliance, exert control and protect themselves and others. The use of force, however, must be reasonable, proportionate and used only to achieve a legitimate police goal. Force itself may never be used as punishment for an offense – particularly when the perceived transgression is disrespect. Here, Respondent's justification for the use of force was discredited. If, as Respondent testified, Davis posed an immediate threat, it was their obligation to take proper police action by ultimately issuing a summons or arresting him. Choosing to beat Davis instead, and then walk away, is tantamount to using force as punishment. Doing so is antithetical to the high moral standards expected of police officers and to legitimate police conduct sanctioned by the NYPD and its Patrol Guide.

In making this finding I note Respondent's argument that Davis is "a bad member of society." (Tr. 526-38) It is not disputed that Davis is presently incarcerated and was affiliated with [REDACTED] gang. Furthermore, Respondent's counsel is likely correct that he showed little respect for the police during this encounter and that he cursed and made threatening statements while at the precinct. In fact, Davis admitted to a scuffle in the stationhouse that night. Although this provides context for the interaction at issue, these details failed to establish a legitimate police purpose that would justify striking Davis in an alleyway multiple times and then walking away.

Accordingly, I find that the force Respondent used against Davis was gratuitous and find him guilty of Specifications 1 and 2.³

Case No. 2011-5899

In this separate action, Respondent stands charged with (i) failing to notify the Internal Affairs Bureau of corruption or misconduct involving a member of service, and (ii) assisting and/or requesting the assistance of another member of the service to prevent the processing and adjudication of a summons issued to another individual on one occasion between March 20, 2010 and September 19, 2011.

The following facts are undisputed. On April 20, 2010, Police Officer Jaime Payan, a PBA Delegate for the 46 Precinct, received a phone call from Police Officer Ray Moreno of Manhattan Traffic. Moreno explained that Respondent had given four traffic summonses to a friend of his and asked Payan "to see what you could do for me" before his

³ Respondent's counsel raised the argument that Respondent did not receive adequate due process in criminal court and noted that a Motion to Vacate Judgment was pending. (Tr. 539-41). This argument was of no consequence in this proceeding. First, the Department did not charge Respondent under any penal code provision. Second, the facts of this case were analyzed under the lesser burden of proof applicable to administrative proceedings. Third, this tribunal did not rely on the findings of fact made by the criminal court judge in determining Respondent's guilt.

friend's April 22, 2010 court date. After going over the details, Payan told Moreno, "I'm going to take care of it for you, just do me a favor, run it by your delegate" (DX 5C at p.2, lns. 2-4)

Respondent received a phone call from Payan the next day. Payan said that he had "a favor to ask" of Respondent and inquired if he was going to traffic court the next day. Respondent stated that he was not because he had to attend a mandatory training session so the ticket would be "squashed." Respondent further recounted that the motorist involved was a "fucking major dick," who threw PBA cards at him. Payan stated that he "wasn't aware he was a scumbag" and told Respondent, "do what you got to do bro, don't worry about it." Respondent replied, "Well he's going to get over you know" (DX 4B)

Unbeknownst to Payan and Respondent, the call was recorded as part of a wiretap investigation aimed at ticket fixing in the Bronx. (Tr. 274, 316-17)

The Department also entered into evidence the transcript of a conversation between Payan and Moreno's PBA Delegate, Police Officer Ronald Wilson, where Payan tells Wilson to relay to Moreno that Respondent will not be attending court and also informs him of what Respondent said about the motorist. (DX 6C) Moreno then called Payan the next day to thank him. (DX 6C) Respondent did not take part in these two subsequent conversations.

The preponderance of the evidence established that Respondent is guilty of failing to notify the Internal Affairs Bureau that a member of service approached him to fix tickets. This tribunal notes that Respondent submitted to an official Department interview regarding his conversation with Payan on September 20, 2011. When asked about the nature of the call, Respondent asserted that Payan was "looking to get a summons taken

care of" when he called him. (RX H at p.12; Tr. 499) Based on this understanding, Respondent was obligated under Patrol Guide 207-21 to notify Internal Affairs that another member of the service sought him out to engage in corruption by "taking care" of a summons. Accordingly, he is Guilty of Specification 1.⁴

At the same September 20, 2011 GO-15 interview, Respondent was asked if he had ever, in the past eighteen months, reached out to another member of the service to have a summons taken care of for a family member. Respondent affirmed that he had done so on one occasion for his cousin. (DX 7B at pp.18-19) As a result of this admission, Respondent was charged with requesting the assistance of another member of the service to prevent the processing and adjudication of a summons issued to another individual on or about and between March 20, 2010 and September 19, 2011 (the eighteen month period immediately preceding Respondent's interview).

Under the applicable statute of limitations, the alleged misconduct must have occurred no more than eighteen months before charges were served on October 6, 2011. N.Y. Civ. Serv. Law § 75 (4). Therefore, the statute of limitations ran from April 6, 2010 to October 6, 2011 and not from March 20, 2010 to September 19, 2011 as set forth in the charges. This left a gap outside the statute of limitations period in which the alleged misconduct could have occurred. As the Department presented no corroborating evidence (i.e. a record of the summons issued to Respondent's cousin Mr. [REDACTED], who Respondent named both during his interview and at trial) to show that the misconduct occurred within

⁴ This tribunal notes that at trial Respondent stated that he did not know what favor Payan wanted because Respondent immediately interjected that he could not attend court due to training and Payan never subsequently stated why he was calling or expressly asked him to take care of the summons. (Tr. 446, 499-500). The tribunal does not accept this explanation. At his GO-15, which was three years before trial and far closer in time to the phone call, Respondent made clear that he understood that Payan was calling to have the summons "taken care of" or dismissed.

the required statutory timeframe, this tribunal finds that the burden of proof was not met. Accordingly, Respondent is found not guilty of Specification 2.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 N.Y.2d 222 (1974). Respondent was appointed to the Department on January 17, 2008. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Respondent has been found guilty of following and engaging in a physical altercation with Tyre Davis without police purpose and failing to notify Internal Affairs upon becoming aware of possible corruption and/or misconduct by another member of the service. The Department Advocate seeks to terminate Respondent, citing the gravity of the misconduct.

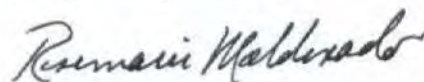
Given the gratuitous use of force in this case, I cannot recommend that Respondent remain a member of the Department. I note that his performance evaluations and the many letters in support of him from current and former members of the Department suggest that he has had an otherwise satisfactory tenure with the NYPD. In this specific case, however, a solid employment record does not mitigate the egregious conduct shown on the video.

The Department has previously found no alternative but to dismiss an officer, even where the officer had an otherwise good record, where the officer unnecessarily and gratuitously used excessive force against a civilian. See *Case No. 84853/09* (June 4, 2012) (dismissing an eight-year officer, with no prior disciplinary history, for turning a civilian

who dented his car upside down and dropping him on his head in the street. Respondent was found guilty in criminal court of assault in the third degree and reckless endangerment in the second degree.); *Case No. 75622/00* (May 31, 2004) (eight-year officer dismissed for allowing another officer to physically assault a civilian. The ADCT found that even though the Respondent was not in a position to prevent the assault on the complainant, he could have rendered aid to her and report the other officer's actions); *Case No. 71613/97* (June 18, 1998) (five-year officer, with above average evaluations and no disciplinary history, dismissed for an off-duty incident in which he hit a civilian with the handle of his gun, claiming that he believed that the person was involved with illegal drugs)

This is a particularly egregious instance of excessive force. As discussed in detail above, Respondent and Ocasio followed Davis after he was released from the stationhouse with his summons and without justification led him into an alleyway, struck him multiple times while he was on the ground protecting his head with his arms and then simply walked away. This is conduct unworthy of a NYPD officer. Accordingly, based on the totality of evidence and testimony presented at trial, and consistent with Department precedent, I recommend that Respondent be DISMISSED from the Department.

Respectfully submitted,



Rosemarie Maldonado
Deputy Commissioner Trials

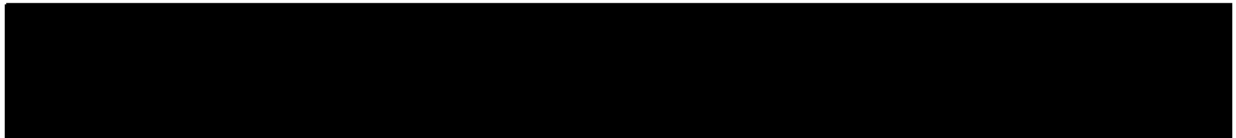


POLICE DEPARTMENT
CITY OF NEW YORK

From: Deputy Commissioner - Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER JOSEPH MURPHY
TAX REGISTRY NO. 946058
DISCIPLINARY CASE NOS. 2011-5248, 2011-5899

Respondent was appointed to the Department on January 17, 2008. His last three annual evaluations were 4.5 overall ratings of "Highly/Extremely Competent" in 2013 and 2014 and a 4.0 rating of "Highly Competent" in 2012. He has no medals.

Respondent has no prior disciplinary history. He was placed on Level 2 Force Monitoring on March 8, 2010 for having three or more CCRB complaints in one year. That monitoring remains in effect.



For your consideration.

A handwritten signature in cursive script that reads "Rosemarie Maldonado".

Rosemarie Maldonado
Deputy Commissioner - Trials